

To: National Telecommunications and Information Administration, U.S. Department of Commerce

From: Ellen S. Podgor, Gary R. Trombley Family White Collar Crime Research Professor and Professor of Law, Stetson University College of Law

Re: Comment - Questions 1a and 1e & Also Considerations Beyond the Specific Questions Presented in the NTIA AI Accountability RFC.

Date: June 11, 2023

The Importance of Creating a Criminal Law Structure Regarding Misuses of AI

AI accountability needs to include statutes criminalizing misuse of AI when there are negligent, reckless, knowing, or purposeful acts that can harm individuals and society. Recognizing that this call for Comment is from an agency perspective, this response suggests that *specific* statutory laws need to be written to also cover criminal misconduct related to the use of AI. In examining the scope of AI accountability mechanisms and possible legislation, consideration needs to recognize how current criminal laws have faced Court rebuke when applied to new forms of conduct or prosecutions that stretch the envelope to encompass conduct that the Court admits is egregious, but not criminal under the charged statute.¹ Therefore, it is important that legislation be drafted to account for possible forthcoming misuses of AI that may not be specifically encompassed within current statutes.

Federal prosecutors have often used mail and wire fraud to address new forms of fraud that are not directly addressed by statute. Chief Justice Burger, joined by Justice White, in a dissenting opinion in *United States v. Maze*, 414 U.S. 395 (1973), wrote that:

Section 1341 of Title 18 U.S.C. has traditionally been used against fraudulent activity as a first line of defense. When a ‘new’ fraud develops – as constantly happens – the mail fraud statute becomes a stopgap device to deal on a temporary basis with the new phenomenon, until particularized legislation can be developed and passed to deal directly with the evil.

Using section 1341- the mail fraud statute, written in 1872 - has not always been successful and specific legislation often comes in response to criminal activity already occurring. For example, the wire fraud statute was not passed until 1952,² the computer fraud statute came in 1984,³ and the health care fraud statute was passed in 1996.⁴

¹ See, e.g., *McNally v. United States*, 483 U.S. 350 (1987)(limiting mail fraud to property rights); *McDonnell v. United States*, 136 S.Ct. 2355 (2016)(“our concern is not with tawdry tales of Ferraris, Rolexes, and ball gowns . . . It is instead with the broader legal implications of the Government’s boundless interpretation of the federal bribery statute”); *Kelly v. United States*, 140 S.Ct. 1565 (2020)(“not every corrupt act by state or local officials is a federal crime.”).

² 18 U.S.C. § 1343.

³ Counterfeit Access Device and Computer Fraud and Abuse Act of 1984, 18 U.S.C. § 1030.

⁴ 18 U.S.C. § 1347.

Although some may assert that specific legislation is unnecessary because the underlying conduct, whether it be espionage, terrorism, or fraud, provides ample criminal statutes in the prosecutor's arsenal to combat this criminality. Similar claims could be made prior to the passage of the computer fraud statute in 1984. After all, the underlying conduct is the illegality, and that is encompassed in existing statutes, as opposed to the means of disseminating it publicly. Whether it was cyber-harassment, cyber-pornography, cyber-terrorism, cyber-espionage, or trafficking in passwords, claims might be made that there were available statutes that could be adapted to fit the conduct prior to the 1984 passage of the computer crimes statute. But specific legislation provides notice, due process, and easier ability to prosecute.⁵ Like computer crimes, AI is likely to be a means for committing an offense, and one could argue that, therefore, specific legislation is unnecessary. This, however, fails to recognize the breadth and ability of AI to change society.

AI comes with a host of new considerations well beyond those considered in drafting the computer fraud statute or other existing criminal legislation. For example, consider these questions:

What level of intent is necessary for an AI crime?

When can a human be considered an actor for what comes from a machine?

Should a company's use of AI that causes a public harm be considered criminally liable for the activity?

Will individuals and companies only be limited for criminal activity when the acts are deliberate or does one need to anticipate the path that AI might take to avoid it resulting in criminality?

Should one be held criminally liable for the unintended consequences when AI results in criminal activity?

Should preventive measures be required by those using AI to avoid possible catastrophic consequences?

An endless list of questions could be imagined as AI develops quickly and without regulatory or statutory boundaries. My comment is that the government misses an important layer of analysis if only looking at civil regulation. Careful consideration should be given to assure that criminal provisions are in place to allow the beneficial qualities of AI to develop without harm to individuals and society.

⁵ See Ellen S. Podgor, *Criminal Fraud*, 48 AMERICAN UNIVERSITY LAW REVIEW 729 (1999) (discussing the breadth and issues of fraud statutes); Ellen S. Podgor, *Do We Need A Beanie Baby Fraud Statute*, 49 AMERICAN UNIVERSITY LAW REVIEW 1031 (2011) (discussing the need for specific statutes, but within reason).